ETHICAL ISSUES IN RESEARCH

HISTORY OF ETHICAL ISSUES IN RESEARCH

Research ethics is a field which developed against the background of the Nuremburg trials held in 1945-46, at which several Nazi scientists, who had conducted inhuman experiments on Jewish inmates of the concentration camps, disabled, homosexuals and other persecuted groups, were tried.

The discovery of the brutal methods adopted by these scientists shocked the world. This indicated the extent to which researchers could go, indulging in torture, ostensibly, in the pursuit of knowledge. This was a wake-up call to the scientific community, indicating the need to set down ethical rules for researchers that they must follow while conducting research. These rules were encoded in the Nuremburg Code (1947), which lay down the directives for human experimentation. Its basic principles state that experiments cannot be conducted on any human being without his or her consent. Any experiment which can lead to disability or death is prohibited and no harm should come to a research subject. Risk of any kind associated with a study is acceptable only to the extent that it is compensated by the benefits expected from the research. The safety and consent of the research subject overrides all other considerations.

The Nuremburg Code is the basis of all subsequent ethical guidelines and protocols for research ethics. Several such guidelines have been adopted by various professional associations and research councils across the world.

ETHICAL PRACTICES IN RESEARCH

1. **Informed Consent**

The willingness of an individual or group to participate in research is an essential ethical requirement. This willingness must be based on full knowledge of what it means to participate in this research and freedom from any form of external pressure or constraints. Full knowledge would include knowing why the research is being done, who is doing the research, what one stands to gain from the research, what are potential risks associated with participation and what are the terms on which one can participate in the study.

Usually, this information is provided in a written form in a document called an information sheet, which is given to the participants. If they cannot read, it may be read out to them and explained. Some groups have also used innovative methods like group meetings, films, posters and role plays to convey this information. Any method which communicates this information effectively and provides space for the participants to clarify doubts, ask questions and make comments is a good method to use.

A useful checklist for drafting this document is as follows:

Name and description

Name and description of the researcher/research team/organization should be informed to the participants. This should include names and contact details of all the key individuals involved, information about their legal status, their scope of work and any specific details that may be relevant to the study.

Description of the research

This should include the goals of the study, where it is being conducted, who or what will be studied, how will they be selected, what kinds of questions will be asked, what other information will be recorded, how long will all this take and who will be involved in collecting all this information. If the research involves conducting any kind of experiments or observations or tests, this should also be explained clearly.

Risks and benefits

All significant risks associated with the study should be explained. The concept of risks is explained in more detail below. While the risks need not be exaggerated, they must also not be underplayed. Likewise, benefits, also explained in more detail below, must be reasonably stated.

Rights of the participants

Certain basic rights are accorded to all participants. This includes the right to withdraw from the research at will, the right to protection of confidentiality and privacy and the right to know the findings of the research. Stating these rights explicitly in the research is essential and amounts to a written assurance by the researcher that they will fulfill their obligations to the participants.

2. Privacy and Confidentiality

Although confidentiality and anonymity are sometimes mistakenly used as synonyms, they have quite distinct meanings. Confidentiality is an active attempt to remove from the research records any elements that might indicate the subjects' identities. In a literal sense, anonymity means that the subjects remain nameless.

This concept derives from two principles;

The respect for a person's dignity and the obligation to prevent harm. It essentially means that all information which could identify a person which is received during the research process must be protected and not shared with anyone outside the research team. There are two aspects to this concept. Firstly, it means that data gathering must be done in conditions where participants have privacy. The researcher must ensure that they cannot be overheard. In some cases, it may be important to ensure that the participant is also not seen giving an interview or participating in a discussion.

In many cases, particularly, in research studies conducted in closed institutions, there may a need to keep the identity of those who refused to participate in the study, also secret. In such cases, even the informed consent procedure must be conducted in complete privacy.

In addition to this, respecting privacy also means that the researcher must respect boundaries laid down by the participants and not intrude into areas beyond the scope of the research. This may mean that they must not approach participants outside certain spaces. They must not attempt to eavesdrop or spy on participants. They may, during the course of the study, become privy to information about the participants through other sources, but they should not use this as data. They should not also use this information to interrogate participants.

Secondly, information gathered from the data collection process must be kept safe and must not be shared with anyone outside the research team. This may require that paper records are kept under lock and key. Digital records may be stored with password protection or encrypted. Further, researchers are required to 'anonymize' data, which means that all identifiers such as names, addresses, details of personal history which could lead to identification of that individual are removed and replaced either by acronyms or pseudonyms. Such practices enhance the safety of data and ensure that confidential information about participants is not unwittingly revealed.

Apart from the data, while reporting the findings too, care must be taken to avoid details which could lead to identification of the participants. This means that specific individual details which are not relevant to the study must be omitted. Findings may need to be presented in aggregate form when disaggregation may lead to revealing the identity of an individual participant, an institution or a community. Certain exceptions are permitted. Such as:

- When the information is already in the public domain and pertains to a public figure, names may be mentioned.
- When a participant or group of participants explicitly states that they want their identity to be stated, the researcher may choose to state their identity.

3. **Risk and Harm**

One of the most important ethical requirements for research is that it should not endanger participants in any way. No scientific achievement is great enough to justify deliberate injury or harm caused to research participants. Thus, in every study, it is important to assess what risk it poses to the participants. These risks may be of varied kinds. At its most fundamental level, it may be a risk to the life and health of the participant. At another level, it may be a risk of financial and material loss.

This may be in the form of wages lost, cost of travel and stay, cost of hosting the research team, loss of production due to inability to devote adequate time to their work.

Research may also pose the risk of stigmatization and discrimination. When it is known that a particular study involves only certain kinds of participants e.g. those suffering from a certain disease or those engaged in a certain activity, those who participate in the study would get identified.

Stigmatization and discrimination may also result from the manner in which findings are reported e.g. when certain clandestine practices prevalent in a particular group or among particular individuals are revealed. Risks may also be emotional. Certain research studies which focus on topics such as violence, abuse or other traumatic experiences may compel participants to relive painful experiences. Some studies may force them to reflect on problems that they find difficult to confront.

A researcher must assess beforehand what risks are associated with a study and what can be done to minimize them. Some measures to change the study design, the data collection procedures, and better training of the research team could very effectively address these risks.

Harm is actual injury of any kind caused to a participant. This, again, could be physical, financial, social or emotional. In most cases, harm is not deliberate. However, the failure to assess risks, make attempts to minimize them, and put in safeguards to deal with situations and problems that could have been predicted is negligent and unethical. In some cases, harm may befall on participants despite the best efforts of the researcher. In such cases, those harmed must be suitably compensated. Firstly, all attempts must be made to alleviate their suffering and, secondly, appropriate compensation in cash, kind or services must be made.

4. Integrity

Another set of concepts in ethics pertain to the 'intentions' of the researcher rather than his or her actions. Integrity, as the word supposes, is about being honest and forthright. There are several aspects of research in which no ostensible harm comes to any participant, but a wrong is committed.

This may be due to several reasons.

Conflict of interest: This is a situation in which two or more roles of an individual conflict with each other and can bias the researchers' perspective. Several forms of conflict of interest exist e.g. an organization may be interested in showing that their programme succeeded and may, therefore, decide to conduct the evaluation themselves or nominate a researcher who is biased towards it. A researcher may be involved in advocacy and campaigns and wants to conduct research to validate her stand. A researcher may be tempted to alter the design of the study or the interpretation of results if she stands to gain financially or professionally from doing so. It is impossible to eliminate all forms of conflict of interest, but being aware of them and making them explicit is essential. In conditions where the conflict of interest is serious enough to damage the credibility of the researcher and influence the conduct of the study, the researcher must give up one of the competing roles. Alternatively, s/he must withdraw from the research.

Fraud: This refers to any form of manipulation of the data. It includes fictitious data generation (called fabrication), selective recording of information, tampering with test results and findings. All forms of fraud are unethical.

Plagiarism: Plagiarism includes using someone else's work without according credit to that person. The most common form of plagiarism is using someone else's published or unpublished writing and claim authorship. Oftentimes, the plagiarized material is not from one source alone, but compiled from various sources. Citing passages from other texts without references is also plagiarism. Other forms of plagiarism include using unpublished data belonging to someone else for analysis and writing. Often, students placed for internship at an institution get access to the records of e.g. patients/clients of an institution and use them for research without permission or acknowledgement. All such forms of plagiarism must be prevented.

5. Benefits

Benefits refer to those which accrue to the research participants and to society at large. The relevance of a research study is determined by the extent to which it contributes to the public good. This contribution may be in terms of useful knowledge, innovations and inventions, goods and services. Some studies may provide direct benefits to the participants in the form of goods and services. Other direct benefits may include education and skill development which may enable participants to enhance their well-being. Other benefits may be collective, such as access to networks, assistance for resource mobilization, publicity, which enables that collective to achieve its objectives. Some studies may not result in any tangible benefits, but serve an emotional or ideological need. They may provide participants with an opportunity to voice their feelings, share their experiences, reflect on their situation and become more aware.

While, in general, benefits accruing to participants are viewed positively, in some circumstances they may be regarded as inducements. A benefit which is large enough to make a participant ignore the risks associated with a study is termed as an inducement. The quantum and type of benefit, which may serve as an inducement, differs from context to context. For those participants who have no access, for e.g. to medical services, the promise of free treatment may serve as an inducement. In another context, teenagers, who are otherwise ignored and not consulted by adults, may feel induced to participate in a study without understanding its

objectives, simply because there is someone who wants to listen to them. In all cases, the researcher must make a judgment about where to draw the line.

Apart from the benefits that accrue directly to the participants, research produces benefits for society. It may add to the body of knowledge, it may provide evidence about the outcomes of programmes, it may provide useful explanations for phenomena and events. Oftentimes, this benefit is realized only in the long term. Those conducting the research may not be in a position to assure the realization of these benefits. There may be a long

6. Mechanisms for Regulating Research

While self-regulation by the researcher is imperative to the ethical conduct of research, there are also institutional safeguards in place. The primary institutional measure for ethics regulation is a research ethics committee or an institutional review board. These are autonomous bodies nominated by the institution to review all research being conducted in a particular institution to ensure that it meets the basic ethical standards. Some ethics committees are not attached to any institution, but function independently. They may review protocols for a fee. In Kenya this is given by the National Commission for Science, Technology and Innovation (NACOSTI) as mandated by the Science, Technology and Innovation Act 2013.